PDL RENTALS LLC

RENTAL LEASE AGREEMENT

THIS LEASE (the "Lease") dated this 1st day of February 2024

BETWEEN:

PDL Rentals LLC

(the Landlord)

-(AND)-

Maurice Lamont Hayes

(the Tenant)

(individually the "Party" and collectively the "Parties")

IN CONSIDERATION OF the Landlord leasing certain premises to the Tenant and other valuable consideration, the receipt, and sufficiency of which consideration is hereby acknowledged, the Parties agree as follows:

Leased Property

1.) The Landlord agrees to rent to the Tenant the Property, municipally described as 370 S. Hydraulic #7, Wichita, KS 67211

(the Property), for the use of a residential premises only. Neither the Property nor any part of the property will be utilized at any time during the term of this Lease by the Tenant for the purpose of carrying on any business, profession, or trade of any kind, or for the purpose of other than as a private single-family residence.

2.) Subject to the provisions of this Lease, apart from the Tenant no other persons will live in the Property without the prior written permission of the Landlord.

3.) No guests to the Tenant(s) may occupy the Property for longer than one week without the prior written consent of the Landlord.

4.) No pets or animals are allowed to be kept in or on the Property without the prior written permission of the Landlord.

5.) Subject to the provisions of this Lease, the Tenant is entitled to the exclusive use of the following parking on or about the property: Onsite parking stalls, off street parking. Vehicles shall not be parked within the yard (grass, graveled), common areas. Non-working, abandoned, non-registered and/or non-state tagged, non-insured vehicles shall not be stored on the Property.
Shared driveways shall be kept clear of vehicles for the equal use of all Tenants who reside on the Property.

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6.) Smoking is permitted on the Property. The Tenant will be responsible for any and all damage caused by smoking including, but not limited to, stains, burns, odors and removal of debris.

7.) The Property is provided to the Tenant without any furnishings.

Term

8.) The Term of the Lease commences at 12:00 noon on February 1st, 2024 and ends at 12:00 noon February 1st, 2024.

9.) Any notice to terminate this tenancy must comply with the applicable legislation of the State of Kansas (The Kansas Tenant-Landlord Act).

Rent

10.) Subject to the provisions of this Lease, the rent for the Property is $725 per month (the "Rent").

11.) The Tenant will pay on or before the 1st of each and every month of the term of this Lease to the Landlord at 1531 N Sheridan – Wichita, KS 67203 or at such other place as the Landlord may later designate.

12.) The Landlord may increase the Rent for the Property at the end of the Lease term providing to the Tenant such notice as required by Kansas Tenant-Landlord Act.

13)A late fee of $35.00 will be assessed for any portion of the rent that is received after the 3-day grace period, which expires on the 4th of each month. Furthermore, an additional fee of $3.00 will be assessed for each day that rent remains unpaid after the grace period, until all outstanding rent and applicable late fees are paid in full.

Security Deposit

14.) On execution of this Lease, the Tenant will pay the Landlord a security deposit of $425 (the "Security Deposit).

15.) The Landlord will return the Security Deposit at the end of this tenancy, less such deductions as provided in this Lease but no deduction will be made for reasonable wear and tear nor for any deductions prohibited by the Act.

16.) During the term of the Lease or after its' termination, the Landlord may charge the Tenant or make deductions from the Security Deposit for any and all of the following:

a. Repair of walls due to plugs, large nails, or any unreasonable number of holes in the walls including the repainting of damaged walls;
b. Repainting required to correct the results of any other improper use or excessive damage by the Tenant;
c. Unplugging of toilets, sinks or drains;
d. Replacing damaged and/or missing doors, windows, screens, blinds, mirrors or light fixtures;

e. Repairing cuts, burns or water damage to carpet/carpet pad, linoleum, rugs or other areas;
f. Any other repairs or cleaning due to any damage beyond normal wear and tear caused or permitted by the Tenant or by any persons whom the Tenant is responsible for;
g. The cost of extermination where the Tenant and/or the Tenant's guests have brought or allowed insects, vermin into the Property or building;
h. Repairs or replacement required where windows are left open which have caused plumbing to freeze, or rain or water damage to walls or floors';
i. Replacement of locks and/or lost keys to the Property and any administrative fees associated with the replacement as a result of the Tenants misplacement of the keys; and
j. Any other purpose allowed under the Lease or the Act

For the purpose of this clause, the Landlord may charge the Tenant for professional cleaning and repairs if the Tenant has not made alternate arrangements with the Landlord.

17.) The Tenant may not use the Security Deposit as payment for the Rent.

18.) Within the time period required by the Act and after the termination of tenancy, the Landlord will deliver or mail the Security Deposit less any proper deductions or with further demand for payment to:

To Be Determined _____,

or at such place as the Tenant may advise.

Pet Fee

19.) On execution of this Lease, the Tenant will pay the Landlord a non-refundable pet fee of $150.00 (the "Pet Fee").

Quite Enjoyment

20.) The Landlord covenants that on paying the Rent and performing the covenants contained in this Lease, the Tenant will peacefully and quietly have, hold, and enjoy the Property for the agreed term.

Inspections

21.) At all reasonable times during the terms of the Lease, the Landlord, and its agents may enter the Property to make inspections or repairs or to show the prospective tenants or purchasers in compliance of twenty-four (24) hours written and/or verbal notice in accordance with the Act.

Tenant Improvements

22.) The Tenant will obtain written permission from the Landlord before doing any of the following:
a. Applying adhesive materials, or inserting nails or hooks in walls or ceilings other than small picture hooks;
b. Painting, wallpapering, redecorating or in any way significantly altering the appearance of the Property;
c. Removing or adding walls, or performing any structural alterations;
d. Installing a waterbed(s)

e. Increasing the amount of heat, water or power typically used on the Property as well as installing electrical wiring or heating units;
f. Placing or exposing or allowing to be placed or exposed anywhere inside or outside the Property any placard, notice or sign for advertising or any other purpose; or
g. Affixing to or erecting upon the Property any radio or T.V. antenna or tower

Utilities and Other Charges

23.) The Landlord is responsible for the payment of the following utilities and other charges in relation to the property:

Electric, Water, Gas, Trash

24.) The Tenant is responsible for the payment of the following utilities and other charges in relation to the Property:

_____

Insurance

25.) The Tenant is at this moment advised and understood that the personal property of the Tenant is not insured by the Landlord for either damage or loss, and the Landlord assumes no responsibility for any such loss.

26.) The Tenant is not responsible for insuring the Landlord's contents and furnishings in or about the property for either damage or loss, and the Tenant assumes no such liability for such loss.

27.) The Tenant is not responsible for insuring the Property for either damage or loss to the structure, mechanical or improvements to the building of the Property, and the Tenant assumes no such liability or such loss.

Governing Laws

28.) This Lease will be construed by and exclusively governed by the laws of the State of Kansas.

Severability

29.) If there is a conflict between any provision of this Lease and the Act, the Act will prevail, and such provisions of the Lease will be amended or deleted as necessary to comply with the Act. Further, any provisions that are required by the Act are incorporated into this Lease.

30.)The invalidity or enforceability of any provisions of this Lease and the Act will not affect the validity or enforceability of any other provisions of this Lease. Such other provisions remain in full force and effect.

Amendment of Lease

31.) This Lease may only be amended or modified by a written document executed by both Parties.

Assignment and Subletting

32.) The Tenant will not assign this Lease, or sublet or grant any concession or license to use the Property or any part of the Property. Any assignment, subletting, concession or license, whether by operation of law or otherwise, will be void and will, at the Landlord's option, terminate this Lease.

Damage to Property

33.) If the Property should be damaged other than by the Tenant's negligence or willful act or that of the Tenant's employee, agent, visitor and the Landlord decides not to rebuild the Property, the Landlord may end this Lease by giving appropriate notice.

Care and use of Property

34.) The Tenant will promptly notify the Landlord of any damage, or for any situation that may significantly interfere with the regular use of the Property or to any furnishings supplied by the Landlord.

35.) The Tenant will not engage in any illegal activity on or about the Property.

36.) The Parties will comply with standards of health, sanitation, fire, housing and safety as required by law.

37.) If the Tenant is absent from the Property and the Property is unoccupied for four (4) consecutive days or longer, the Tenant will arrange for regular inspection by a competent person. The Landlord will be notified in advance as to the name, address and phone number of the individual(s) doing the inspections.

38.) At the expiration of the term of this Lease, the Tenant will quit and surrender the Property in a good state, and condition, as they were at the commencement of this Lease, reasonable use, wear, and tear, is expected.

Hazardous Materials

39.) The Tenant will not keep or have on the Property any article or thing of dangerous, flammable, or explosive character that might unreasonably increase the danger of fire on the Property or that might be considered hazardous by any responsible insurance company.

Rules and Regulations

40.) The Tenant will obey all rules and regulations of the Landlord regarding the Property.

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Address for Notice

41.) For any matter relating to this tenancy, the Tenant may be contacted at the Property or through the phone number listed below.

a. Name: Maurice Lamont Hayes

b. Phone Number: TBD

c. Post termination notice address:
TBD

42.) For any issue relating to this tenancy, whether during or after this tenancy has been terminated, the Landlord's address for notice is:

a. Name: PDL Rentals LLC
b. Address: 1531 N Sheridan – Wichita, KS 67203

The contact information for the Landlord is:

c. 1 - (316) 350-4020 – Paul Jr.
d. 1 – (316) 259-7203 – Anthony

General Provisions

43.) All momentary amounts stated or referred to in this Lease are based in the United States Dollar.

44.) Any waiver by the Landlord or any failure of the Tenant to perform or observe the provisions of this Lease will not operate as a waiver of the Landlord's rights under this Lease in respect of any subsequent defaults, breaches, or non-performance and will not defeat or affect in any way the Landlord's rights in respect of any subsequent default or breach.

45.) This Lease will extend to and be binding upon and inure to the benefit of the respective heirs, executors, administrators, successors and assigns, as the case may be, of each Party. All covenants are to be construed as conditions of this lease.

46.) All sums payable by the Tenant to the Landlord under any provisions of this Lease will be deemed to be additional rent and will be recovered by the Landlord and as rental arrears.

47.) Where there is more than one (1) executing this Lease, all Tenants are jointly and severally liable for each other's acts, omissions, and liabilities under this Lease.

48.) Locks shall not be added or changed without the prior written consent of the Landlord, or unless the changes are in compliance with the Act.

49.) The Tenant will be charged an additional $25.00 for each N.S.F. check or checks returned by the Tenant's finical institution.

50.) Headings are inserted for the convenience of the Parties only and are not to be considered when interpreting the Lease. Words in the singular mean and include the plural and vice versa. Words in the masculine mean and include the feminine and vice versa.

51.) The Lease and the Tenant's leasehold interest under this Lease are and will be subject, subordinate and inferior to any liens or encumbrances now or hereafter placed on the Property by the Landlord, all advances made under any such liens or encumbrances, the interest payable under any such liens or encumbrances, and any and all renewables or extensions such liens or encumbrances.

52.) This Lease may be executed in counterparts. Facsimiles signatures are binding and are considered original signatures.

53.) This Lease constitutes the entire agreement between the Parties. Any prior understanding or representation of any kind preceding the date of this Lease will not be binding on either Party except to the extent incorporated into this Lease.

54.) The Tenant will indemnify and save the Landlord, and the owner of the Property where different from the Landlord, harmless from all liabilities, fines, suits, claims, demands and actions of any kind or nature for which the Landlord will or may become liable or suffer by reason of any breach, violation or non-performance by the Tenant or by any person for whom the Tenant is responsible, of any covenant, term, or provisions hereof or by reason of any act, neglect or default on the part of the Tenant or other person who the Tenant is responsible for. Such indemnification in respect to any such breach, violation or non-performance, damage to property, injury or death occurring during the term of the Lease will serve the termination of the Lease, notwithstanding anything in this Lease to the contrary.

55.) The Tenant agrees that the Landlord will not be liable or responsible in any way for any personal injury or death that may be suffered or sustained by the Tenant or by any person who the Tenant is in charge who may be on the Property of the Landlord or for any loss of or damage or injury to any property, including vehicles and contents thereof belonging to the Tenant or any person for whom the Tenant is responsible.

56.) The Tenant is responsible for any individuals who are upon the or occupying the Property or any part of the Landlord's premises at the request of the Tenant, either express or implied, whether for the purpose of visiting the Tenant, making deliveries, repairs or attending upon the Property for any other reason. Without limiting the generality of the preceding, the Tenant is responsible for all members of the Tenant's family, guests, servants, tradesmen, repairers, employees, agents, invitees or other similar persons.

57.) During the last thirty (30) days of this Lease, the Landlord or the Landlord's agents will have the privilege of displaying the usual 'For Sale' or 'For Rent' or 'Vacancy' signs on the Property.

58.) Time is of the essence in this Lease.

PDL RENTALS LLC

IN WITNESS WHEREOF PDL Rentals LLC and Maurice Lamont Hayes have duly affixed their signatures on this 1 day of February 2024.

Landlord: PDL Rentals LLC

Per: Paul LaBrue Jr

Tenant: Maurice Lamont Hayes

Maurice Hayes

The tenant acknowledges receiving a duplicate copy of this Lease signed by the Landlord and the Tenant on the 1st day of February 2024

Tenant: Maurice Hayes